IN THE NATIONAL COMPANY LAW TRIBUNAL, AHMEDABAD
COURT - 2

ITEM No.402

CA(CAA)/6(AHM)2023

Proceedings under Section 230-232 of Co. Act, 2013

IN THE MATTER OF:

Ram ji Developers Private Limited **.....Applicant**
Endeavour Developers Private Limited
Subh Dwelling Private Limited **.....Respondent**
Lily Enterprises Private Limited
Tina Marketing Private Limited

Order delivered on .05.06.2023

Coram:

Mr. Shammi Khan, Hon'ble Member(J)
Mr. Ajai Das Mehrotra, Hon'ble Member(T)

PRESENT:

For the Applicant : Mr. Ashish Shah, PCS
For the Respondent :

ORDER

Learned PCS Mr. Ashish Shah appears for the Petitioner Companies.

Following clarifications / documents are required :-

1. At Page 39, in case of Transferor Company No.1, the Certificate of Incorporation (COI) shows registered office at Delhi but no document annexed with this application which shows change of registered address to Gujarat.

2. At Page. 70, in case of Transferor Company No.2, the Certificate of Incorporation (COI) shows registered office at Delhi but no document annexed with this application which shows change of registered address to Gujarat.

3. At Page 116, in case of the Transferor Company No.3, the Certificate of Incorporation (COI) shows registered office at Delhi but no document annexed with this application which shows change of registered address to Gujarat.

4. At Page 11, in Para (iii) Registered office shown in Gujarat, but no document annexed about this.

5. At Page. 328-345, the certificate under Section 133 given by independent auditor is attached but not of the statutory auditor as required.

6. For the transferor company no.1, consent affidavits of equity shareholders annexed at Page 352-356 are photo copy and original are not annexed.

7. For the transferor company no.2, consent affidavits of equity shareholders annexed at Page 357-359 are photo copy and original are not annexed.

8. For the transferor company no.3, consent affidavits of equity shareholders annexed at Page 360-362 are photo copy and original are not annexed.

9. For the transferor company no.4, consent affidavits of equity shareholders annexed at Page 363-365 are photo copy and original are not annexed.

10. For the transferor company no.5, consent affidavits of equity shareholders annexed at Page 366-368 are photo copy and original are not annexed.

11. For the transferor company no.6, consent affidavits of equity shareholders annexed at Page 369-370 are photo copy and original are not annexed.

12. The CA Certificates annexed with this application regarding equity share holders and secured creditors of all applicant companies are photocopy, and further certified list of unsecured creditors for all applicant companies are not annexed, whereas the requirement was to submit list of unsecured creditors, duly certified by CA.

Learned PCS undertakes to comply within 10 days.

The case is already reserved for orders.

Sd- Sd-

AJAI DAS MEHROTRA
MEMBER (TECHNICAL)

SHAMMI KHAN
MEMBER (JUDICIAL)